

**BEFORE THE DISTRICT CONSUMER DISPUTES REDRESSAL COMMISSION
AT HYDERABAD, TELANGANA**

Consumer Complaint No.: CC/512/2023

Date of Filing: 07.11.2023

Date of Order: 18.09.2025

Date of Hearing: 02.09.2025

CORAM:

Sri. V. Krishna Reddy, M.A., LL.B., President

Smt. P. Anuradha, M.Com., LL.M., Member

Sri. T. Mohan Rao, B.E., LL.B., Member

Rajesh Mathew, S/o V. K. Mathew

Plot No. 87, Sector 5, Kondapur,

Hyderabad - 500084, Telangana.

...Complainant

Versus

1. M/s. Skyline Developers Private Limited

Survey No. 42/3, Gachibowli Main Road,

Hyderabad - 500032, Telangana.

Represented by its Managing Director, Sri. K. Sridhar.

...Opposite Parties

ORDER

Per Sri. V. Krishna Reddy, President:

1. Brief Facts of the Case

The complainant entered into an Agreement to Sell dated 17.06.2020 with the Opposite Party for the purchase of Flat No. 1404, Tower B, in the residential project 'Skyline Pinnacle' situated at Survey No. 42/3, Gachibowli, Hyderabad, for a total consideration of Rs. 78,50,000/-.

As per Clause 5 of the said Agreement, the Opposite Party undertook to deliver possession of the flat by 31.12.2022 with a grace period of six months, i.e., by 30.06.2023 at the latest.

The complainant has paid a total sum of Rs. 76,20,000/- to the Opposite Party across various instalments between June 2020 and March 2023, leaving only the final 3% payment linked to handover of possession.

Despite the contractual deadline of 30.06.2023 having long since passed, possession of the flat has not been delivered as of the date of filing of this complaint. The Opposite Party has neither informed the complainant of a revised handover date nor paid any delay compensation as contemplated under Clause 9 of the Agreement.

2. Contentions of the Complainant

The complainant has produced the Agreement to Sell (Ex. A-1), payment receipts totalling Rs. 76,20,000/- (Ex. A-2 to A-19), email correspondence between the parties from January 2023 to October 2023 (Ex. A-20), and the Real Estate (Regulation and Development) Act, 2016 registration certificate of

the project showing original handover date of 31.12.2022 (Ex. A-21).

It is contended that the inordinate delay of over five months (as on date of complaint) beyond the contractual deadline, coupled with the absence of any communication or compensation, amounts to deficiency in service.

3. Reply of the Opposite Parties

The Opposite Party, in its written version, has attributed the delay to factors including the COVID-19 pandemic, regulatory hurdles in obtaining occupancy certificate, and supply chain disruptions. However, no documentary evidence has been produced to substantiate any of these claims, nor has the Opposite Party invoked any force majeure provision in writing prior to the contractual deadline.

4. Issues for Determination

- (a) Whether the Opposite Party has committed a breach of the Agreement to Sell by failing to deliver possession within the agreed timeframe?
- (b) Whether such failure constitutes deficiency in service?
- (c) What is the appropriate compensation due to the complainant?

5. Findings and Reasoning

The Agreement to Sell unambiguously stipulates 30.06.2023 as the outer limit for handover of possession. The Opposite Party has not produced any contemporaneous notice extending this date or invoking force majeure prior to the deadline.

Bald assertions about the pandemic and regulatory hurdles, raised for the first time in pleadings filed in response to this complaint, cannot be permitted to rewrite the contractual obligations of the parties. The Hon'ble National Commission has consistently held that delay compensation must be paid as per the contractual terms unless the developer can demonstrate a genuine force majeure.

The complainant has paid 97% of the consideration and has been deprived of both the use of the flat and the use of his funds. The standard rate of delay compensation applied by this Commission and consistent with RERA jurisprudence is the State Bank of India's MCLR plus 2% per annum on the amounts paid, for the period of delay.

6. Order

The Commission holds the Opposite Party guilty of deficiency in service for the delay in handover of possession.

In view of the foregoing, the Commission hereby directs:

- (a)** The Opposite Party shall deliver possession of Flat No. 1404, Tower B, Skyline Pinnacle, to the complainant within 90 days of this order, fully complete with all amenities and after obtaining the occupancy certificate.
- (b)** The Opposite Party shall pay delay compensation at the rate of SBI MCLR + 2% per annum on the principal amount of Rs. 76,20,000/- from 01.07.2023 till the actual date of handover.
- (c)** The Opposite Party shall additionally pay a sum of Rs. 1,00,000/- (Rupees One Lakh only) towards mental agony, inconvenience, and harassment caused to the complainant.
- (d)** In the event that possession is not handed over within 90 days, the complainant shall be entitled to seek refund of the entire sum of Rs. 76,20,000/- along with interest at 12% per annum from the

respective dates of payment, in addition to the compensation awarded.

The complaint is accordingly **allowed** with the above directions. Compliance to be reported within the time stipulated. Costs of Rs. 10,000/- are also awarded to the complainant.

(Sri. V. Krishna Reddy)

(Smt. P. Anuradha)

(Sri. T. Mohan Rao)

Place: Hyderabad

Date: 18.09.2025

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